State vs (1) Mahesh on 31 May, 2019

IN THE COURT OF SH. VIDYA PRAKASH:
ADDITIONAL SESSIONS JUDGE / NORTH EAST:
KARKARDOOMA COURTS: SHAHDARA: DELHI.

Sessions Case No. 76/2016
CNR No. DLNE01-001929-2016

STATE Versus (1) Mahesh
S/o Nathudas
R/o H.No. 21, Gali No. 19,
Dayalpur Vistar, Delhi.
Permanent Address:-
Village Bug Behra,
PS & District Sita Madi, Bihar.

(2) Kallu @ Arun Sharma
S/o Krishan Pal Sharma
R/o H.No. 23, Gali No. 18,
Dayalpur Vistar, Delhi.
Permanent Address:-
Village Lilyana, PS Chandi Nagar,
District Bagpat, UP.

FIR No.	:	727/2015
PS.	:	Khajuri Khas
U/s.	:	307/34 IPC
Chargesheet Filed On	:	05.02.2016
Date Of Allocation	:	13.05.2016
Judgment Reserved On	:	27.05.2019
Judgment Announced On	:	31.05.2019

JUDGMENT:

1. Case of the prosecution is that on 09.07.2015 at about 10:02 pm, DD No. 114-B was recorded at PS Khajuri Khas regarding quarrel, which was marked to ASI Prempal (PW-7). Another DD No. 116-B was registered through PCR call, which was marked to SI Sahab Singh (PW-8). ASI Prempal alongwith Ct. Lalit Kumar (PW-5) reached at place of incident i.e. Tukmeerpur Dhalan, near Pushpanjali School, where they came to know that inured had been taken to JPC Hospital by PCR van. Thereafter, both of them reached JPC Hospital and obtained MLC No. A-100/15 of injured. ASI Prempal recorded statement (Ex.PW2/A) of injured Vijay (PW-2), wherein he claimed that he was residing with his parents and was doing work of Jari at Kailash Nagar, Gandhi Nagar. On 09.07.2015, in the evening hours after his duty, he consumed liquor and left for his house. At about 9:30 pm, when he reached in front of Delhi Police Training Centre after coming down from dhalan near Pushpanjali School, Mahesh alongwith Kallu were standing there near egg rehri, whom he already knew. They had already consumed liquor. Mahesh asked him where he was going and how

much money he was having. Vijay replied that he did not have money. Upon this, Mahesh and Kallu abused him. When he opposed, they had beaten him with kicks and punches. Mahesh hit a danda blow on his head and Kallu attacked 2-3 times with a knife used for egg cutting. When he tried to save himself, the knife had hit his right hand and he became unconscious. Somebody called at 100 number. PCR van had taken him to hospital. Mahesh and Kallu assaulted to kill him and caused him injuries. Doctor gave his opinion regarding nature of injuries as sharp. It is the further case of the prosecution that at the instance of injured Vijay, SI Sahab Singh prepared site plan, recorded statements u/s 161 CrPC of witnesses, searched for accused persons. He alongwith Ct. Lalit reached Gali No. 19, Dayalpur, where at the instance of complainant, accused Mahesh was apprehended. IO SI Sahab Singh recorded disclosure statement of accused Mahesh who disclosed that on 09.07.2015, he alongwith his associate Kallu started beating complainant Vijay and gave him 2-3 blows with knife used for egg cutting. Accused also told that he had thrown the knife in ganda naala. Despite efforts, the said knife could not be recovered. Thereafter, he alongwith constable and complainant went in search of accused Kallu @ Arun Sharma at Gali No. 18, Dayal Pur Extension, where at the instance of complainant, they apprehended him. SI Sahab Singh also recorded his disclosure statement, in which he disclosed that he alongwith his associate Mahesh assaulted the complainant and hit danda on his head and caused injuries to him. Accused Kallu also disclosed that he had thrown the said danda in front of PTS. The said danda was got recovered having length of about 2 ft. SI Sahab Singh recorded the statements u/s 161 CrPC of witnesses during the course of investigation. After completion of investigation, chargesheet was filed u/s 307/34 IPC.

2. After compliance of section 207 CrPC, learned MM committed the case to Court of Sessions as offence u/s 307 IPC was exclusively triable by it.

3. Vide order dated 10.06.2016, my learned Predecessor framed the charge for offence punishable u/s 307/34 IPC against both the accused. Both the accused pleaded not guilty and claimed trial.

4. In order to prove the charges, the prosecution examined around 09 witnesses.

5. Statements u/s 313 CrPC of both accused persons were recorded. Accused Mahesh preferred not to lead any evidence in his defence. However, accused Kallu @ Arun Sharma preferred to lead DE and also examined his father namely Sh. Krishan Pal Sharma as DW-1 in his defence. Testimony of this witness shall be discussed hereinafter.

6. Evidence led by the prosecution / parties may now be noted. MATERIAL / INJURED / EYEWITNESSES

7. PW-2 is Vijay. He deposed that used to prepare wooden boxes for packing in Kailash Nagar, Gandhi Nagar, Delhi in factory of Parshuram. He further deposed that it was 09.07.2015 at about 09.30 p.m., he was returning to his house from his work place. When he reached near Pushpanjali School after coming down from the slope in front of Delhi Police Training Center, the accused Mahesh was standing with Kallu on his rehri of eggs. They were known to him. He identified accused Mahesh and Kallu during court proceedings.

8. He further deposed that both of them were already drunk. Accused Mahesh asked him as to how much amount he was carrying. Both demanded money from him. He refused to give money to them. They started giving him abuses in the name of mother and sister. They started beating him. When he protested, accused Mahesh hit a danda on his head. Accused Kallu picked up a knife used for cutting eggs from rehri of Mahesh and attacked 2-3 times on him. They pushed him on the rehri. He saved himself from the knife attacks and in that process, he sustained injury on his right hand. He ran away towards his house. In the meanwhile, his father reached there. Some passer-by made a call at 100.

9. He further deposed that he had been taken to Jag Parvesh Chandra Hospital in Ambulance by his father and uncle Sh. Shiv Kumar. In Jag Parvesh Chandra Hospital, SI Prempal recorded his statement at about 11.00- 11.30 p.m., which is exhibited as Ex.PW2/A.

10. The witness stated that his statement Ex.PW2/A was correct. He further stated that he had not become unconscious but after sustaining injury, he fell down. PCR van had not taken him to Jag Parvesh Chandra Hospital but ambulance had taken him. He was referred to another hospital for further treatment.

11. He further deposed that after discharge, he alongwith SI Sahab Singh reached at the place of incident, where SI Sahab Singh prepared site plan of the place of incident at his instance in his presence. Site plan is exhibited as Ex.PW2/B.

12. He further deposed that in the evening of 10.07.2015, accused Mahesh was arrested from his house in Gali No. 19 at about 04.30 p.m. - 05.00 p.m. His arrest memo is exhibited as Ex.PW2/C. SI Sahab Singh conducted his personal search, vide personal search memo Ex.PW2/D.

13. He further deposed that thereafter, accused Kallu was arrested from his house in Gali No. 18, Dayal Pur Extn., Delhi-94 at about 05.00 p.m. His arrest memo is exhibited as Ex.PW2/E. His personal search was conducted, vide personal search memo Ex.PW2/F.

14. However, he did not identify the case property i.e. one wooden danda having four nods. He stated that it was not the danda with which accused Mahesh had hit him.

15. In his cross-examination, he deposed that he had taken liquor alone in gali. He brought quarter of liquor from liquor shop in Gandhi Nagar. He left his work place at 09.00 p.m. He had taken TSR from Gandhi Nagar and reached Shastri Park and from there, he had taken another TSR for Khajuri. He had not taken dinner after consuming liquor. He reached Khajuri within 30 minutes. One can reach in 10 minutes to his house from Delhi Police Training Center after crossing the road. He did not remember the time when his statement was recorded by the police officer. He himself gave his statement. His father did not tutor him. He reached the hospital at about 10:00-10:30 pm. He did not state in his statement that accused persons had demanded money from him. He had told it to SHO. He had stated in his police statement that the accused persons abused him in the name of mother and sister. He was confronted with statement Ex.PW2/A, where it was not recorded. He had stated in his police statement that he ran away towards his house. He was confronted with statement

Ex.PW2/A, where it was not recorded. He deposed that he knew the accused persons prior to the incident. He had never eaten eggs at rehri of accused Mahesh. He was not having friendship or quarrel with them prior to the incident. There was no other rehri or vegetable shop near the rehri of accused Mahesh. Barber shop was situated at a distance of 20-25 steps from the spot. One bank and 5-6 shops were situated near the barber shop.

16. He also deposed that he had visited the police station from hospital in the next morning. He told the facts to the SHO in police station. He neither signed any blank paper in police station nor he put his thumb impression. He was also treated in GTB Hospital. He went to GTB Hospital by TSR at 12.00 night. Doctor had asked him regarding the incident and he informed them about it. He denied the suggestion that he had not stated to the doctor about the incident. He informed the doctor that he had taken liquor. He denied the suggestion that he was in highly inebriated condition. He further deposed that since no public person was present at the place of incident, no one stated about the incident before the police. He denied to have stated in his police statement Ex.PW2/A that he had become unconscious but when was confronted with the statement Ex.PW2/A, it was found to be so recorded. He deposed to have stated in his police statement that accused persons had pushed him on the rehri but when he was confronted with the statement Ex.PW2/A, it was not found to be so recorded.

17. He further deposed that he was working with Sh. Parshuram in Shyam Block, Gandhi Nagar who was having thala on patri. He did not remember how many times his statements were recorded by the police. He also did not remember the places where his statements were recorded except hospital. He further deposed that no public person came to save him. He denied the suggestion that he had gone to the house of in-laws in drunken condition or that he was beaten there by his in-laws. He denied the suggestion that he used to consume liquor daily. He denied the suggestion that he was a quarrelsome person. He also denied the suggestions that he had fallen on the fencing of Delhi Police Training Center in drunken condition and sustained injuries or that he had falsely implicated the accused persons. He denied the suggestion that on occasion of Holi, he was roaming in gali in drunken condition or that father of accused Arun @ Kallu asked not to visit there or that is why, he falsely implicated him in this case.

18. He also denied the suggestions that he had concocted a false story. He admitted that site plan did not bear his signature or thumb impression. He deposed that site plan was prepared in his presence. He did not remember the date when it was prepared. He denied the suggestion that Arun @ Kallu was not present on the rehri on that day.

19. PW-3 is Vinod. He is father of PW-2 Vijay. He deposed that on 09.07.2015 at about 9.30 pm, he was present in his house. One child came to his house and informed him that there was a quarrel with his son Vijay at Dhalan near Pushpanjali School, Tukmirpur. He reached the spot. An ambulance had been taking his son to hospital. He also reached at Jag Pravesh Chand hospital. His son Vijay was treated in Jag Parvesh Chand hospital. ASI Prempal of PS Khajuri Khas recorded statement of his son Vijay. Vijay was referred to GTB Hospital. He was discharged from GTB hospital after treatment. He further deposed that on the next day, SI Sahab Singh had come to their house. He alongwith his son Vijay and SI Sahab Singh reached the spot. SI Sahab Singh prepared

site plan of the place of incident at the instance of his son. SI Sahab Singh searched the accused persons Mahesh and Kallu but they were not found at that time.

20. He further deposed that his son Vijay told him that while he was returning from his work, accused Mahesh and Kallu demanded money from him and when he (Vijay) refused to give money to them, they quarreled with him. Accused Mahesh had beaten him with a danda and accused Kallu attacked him with knife. He identified accused Mahesh and Kallu during trial.

21. In his cross-examination, he deposed that he was having his shop in gali no. 6 in Tukmir Pur on rent @ Rs. 10,000/- per month. He had visited JPC Hospital by TSR at about 10.00 pm. It took about 30 minutes in reaching JPC Hospital from the spot. Ambulance had taken his son to hospital prior to his reaching the spot. Public persons were present at the spot when he reached there. There were many shops near the spot. He denied the suggestion that no such incident happened there.

22. He further deposed that he did not know at which time his son Vijay was taken to GTB Hospital. He could not tell the distance between JPC Hospital and GTB Hospital. He was not carrying mobile phone at that time. He reached at his house at about 02.00 am from the hospital. IO met them in JPC Hospital. His statement was not recorded in the hospital. He met IO in the morning at about 08.00 am. He signed on few written documents. He could not tell nature of those documents. After going through the judicial file, he admitted that none of the documents having his signature, was available on it. He did not remember as to whether his signature was obtained in hospital, police station or spot. He deposed that he did not know if his son Vijay had consumed liquor on that day. He did not state to the doctor about consuming liquor in his presence. He was standing outside Casualty when treatment was provided to Vijay in JPC Hospital. He further deposed that he remained in GTB Hospital for about 30 minutes. He alongwith his son Vijay left GTB Hospital by TSR. He admitted that he was not present at the spot at the time of incident. He denied the suggestions that his son did not state anything about the incident to him or that his son was under the influence of liquor or that he did not give any statement to IO at the spot or in the hospital or that he did not reach the hospital. He further deposed that Vijay was working in Ghaas Mandi area of Gandhi Nagar. He did not know if Vijay used to consume liquor and ganja.

23. PW-9 is Ramveer Singh. He deposed that on 09.07.2015, he had come to house of his one relative at Tukmir Pur, Delhi. When he was present opposite Police Center, one person had demanded his mobile phone to make a call. He had given his mobile phone having mobile no. 9560616771 to that person. After making call, said person handed back his mobile phone to him. After taking his mobile phone, he left from there for Tukmir Pur to meet his relative.

24. In his cross-examination, he admitted that his name was not Ram Singh. He deposed that police never recorded his statement. The mobile phone no. 9560616771 was not registered in his name. He did not know as to where and to whom the said person had made call from his mobile phone. He admitted that he had not seen any quarrel. He denied the suggestion that he had not handed over said mobile phone to anyone as deposed by him. INVESTIGATION WITNESSES

25. PW-5 is HC Lalit Kumar. He deposed that on 09.07.2015 he was serving as constable at PS Khajuri Khas. On that day, ASI Prem Pal received an information through DD No. 114B. Thereafter, he alongwith ASI Prem Pal reached at the spot i.e. Tukmirpur in front of Delhi Police Training Centre, where they came to know that injured had been taken to hospital by PCR van. Thereafter, they reached in JPC, Hospital where they met injured Vijay and his father. IO collected MLC of the injured. He further deposed that ASI Prem Pal recorded the statement of injured Vijay and made the endorsement on the said statement. He took rukka to the police station and after getting the case registered at police station, he handed over the original rukka and copy of FIR to SI Sahab Singh as further investigation was assigned to him. He further deposed that thereafter, he accompanied SI Sahab Singh at the spot, where they met ASI Prem Pal. Injured also came there. SI Sahab Singh inspected the spot and prepared rough site plan at the instance of injured/complainant. They made search for accused persons.

26. He further deposed that when they were searching for the accused, the complainant was also with them. At the pointing out of the complainant, they had apprehended accused Mahesh. He was interrogated by the IO. During the course of interrogation, accused made disclosure statement (Ex.PW5/A). Accused disclosed that after commission of the offence, he had thrown the danda used in the commission of the offence, in the bushes at service road and he could get the same recovered. Co-accused Kallu was also apprehended at the pointing out of the complainant. Accused Kallu made disclosure statement (Ex.PW5/B) disclosing that after commission of the offence, he had thrown the knife in a ganda nala and he could get the same recovered. Accused Mahesh was arrested, vide memo Ex.PW2/C. His personal search was conducted, vide memo Ex.PW2/D. Accused Kallu was also arrested, vide memo Ex.PW2/E. His personal search was conducted, vide memo Ex.PW2/F.

27. PW-5 further deposed that accused Mahesh led them to the disclosed place and from there, he got recovered one danda. The measurement of the danda was done by SI Sahab Singh. It was kept in a white cloth and it was converted into a parcel, which was sealed with the seal of SS and parcel was seized, vide memo Ex.PW5/C. Accused Kallu @ Arun Sharma also led them to disclosed ganda nala near Tukmurpur Road but despite efforts, the knife could not be recovered. However, at the pointing out of the said ganda nala by accused Kallu @ Arun Sharma, the pointing out memo Ex.PW5/D was prepared. He correctly identified both the accused persons Mahesh and Kallu @ Arun Sharma. He also identified case property i.e. one wooden danda as the same danda which was got recovered by accused Mahesh. The danda was exhibited as Ex.P1.

28. In his cross-examination, he deposed that he did not know who made the call at police station on the basis of which DD No. 114-B was recorded. However, the call was received at about 10:02 pm. Only he and ASI Prem Pal had proceeded from the police station after receiving the aforesaid information and no other police official was with them when they went to the spot. They had gone on one bike. He further deposed that at the spot, some public persons met them and informed that the injured had been taken to hospital but those public persons did not disclose their names and addresses to ASI Prem Pal. They reached in the hospital at about 11:00 pm. He did not remember the bed number but it was emergency ward.

29. He further deposed that he reached at the police station with the rukka at about 12:15 am. He further deposed that the injured was under influence of liquor when he and ASI Prem Pal met him in the hospital. He alongwith SI Sahab Singh reached at the spot at about 12:45 pm on bike of SI Sahab Singh. He did not remember if any public person was also available at the time of preparation of site plan at instance of injured by SI Sahab Singh. Injured and his father had gone from the spot but he did not know where. He did not remember whether anything was recovered from personal search of accused persons. Personal search of accused Mahesh was taken at around 5:00 am and that of accused Arun Sharma was taken at around 5:45 am. No public person except the injured and his father were present at the time of arrest of both the accused persons. Both injured and his father had signed the arrest memos. (Ex.PW2/C and E were shown to the witness). He admitted that there was no signature of father of injured on said arrest memos. He further deposed that he had seen blood spots at the place of occurrence. However, IO had not lifted the blood from the spot. He denied the suggestion that IO had not lifted the blood from the spot because there was no such blood at the spot. When he had gone to the hospital initially with ASI Prem Pal, he had also seen blood on the clothes of the injured. He was not aware if IO had seized those clothes or not.

30. He denied the suggestion that he did not join the investigation at any point of time or that he did not visit the hospital or the place of occurrence or that he did not witness arrest of both the accused or that he had signed on the documents in the police station at behest of the IO or that no recovery was effected from accused Mahesh.

31. PW-7 is SI Prem Pal. He deposed that on 09.07.2015, he was posted at PS Khajuri Khas as ASI. On the intervening night of 09/10.07.2015, he was on emergency duty. At about 10:02 pm, on receipt of DD No. 114-B, he alongwith Ct. Lalit Kumar reached the spot i.e. near Delhi Police Training Centre, Tukmeerpur towards dhalan, where they came to know that injured had been taken to JPC Hospital by the PCR staff. From there, they reached JPC Hospital where he collected MLC of injured Vijay and recorded his statement (Ex.PW2/A). He further deposed that on the statement of Vijay, he made rukka (Ex.PW7/A) and gave the same to Ct. Lalit for registration of the case. After that, he left the hospital and reached the spot. He further deposed that after registration of the case, SI Sahab Singh alongwith Ct. Lalit also reached at the spot. He handed over copy of MLC of injured Vijay to SI Sahab Singh. Thereafter, he left the spot.

32. In his cross-examination, he deposed that as per MLC, injured was under influence of alcohol. He further deposed that no eyewitness was found present there at that time. No article was lifted by him from the spot as same was not seen by him. He had reached the spot on the motorcycle of Ct. Lalit. He did not remember the registration number of said motorcycle. They had reached the hospital from the spot at about 11:20 pm. He could not tell the exact distance between the spot and the police station as same was not measured by him but it might be 3 km. In the hospital, injured and his father met him. It took about 10- 15 minutes in recording the statement of injured. He had come back to the spot from the hospital in TSR at about 12:45 am. He further deposed that when he had come back at the spot, at that time also no eyewitness was found present. He denied the suggestion that he had not visited the spot at any point of time. He further deposed that no public person was present at the spot so he had not conducted any local inquiry. No photographs of the spot were got prepared by him. He denied the suggestion that he was not aware of the spot or that

due to this reason, he had not reached at the spot. He admitted that injured did not meet him on the spot at any point of time. He had left the spot just after his statement was recorded by SI Sahab Singh. His statement was recorded by the IO by sitting on a small boundary wall, which was near the spot. The height of the said boundary wall was so high that they could sit on the same. He admitted that said boundary wall had not been marked by IO in the site plan. He denied the suggestions that his statement was not recorded by the IO at the spot or that same was recorded by the IO at PS or due to this reason, IO had not shown the boundary wall in the site plan. He further deposed that in his presence, no exhibit was collected by IO/SI Sahab Singh. Ct. Lalit and SI Sahab Singh had come at the spot on two motorcycles. In his presence, SI Sahab Singh had not recorded statement of any public person. He admitted that his statement recorded by IO/ SI Sahab Singh was not signed by him and he had not signed any memo and also that 100 number call was not made by the injured or his father. He also admitted that DD no. 114 B does not contain name of any accused.

33. PW-8 is SI Sahab Singh (Retd.). He deposed that on 09.07.2015, he was posted as SI at PS Khajuri Khas, Delhi. On that day, DD No. 116B was marked to him. Prior to that, DD No. 114B was marked to ASI Prem Pal, who alongwith Ct. Lalit had reached the spot and from there, they had reached JPC hospital where ASI Prem Pal had recorded statement of injured Vijay and made endorsement on the same for registration of the present case. He further deposed that after registration of the case, further investigation was marked to him. He had received copy of FIR from Ct. Lalit. He further deposed that thereafter, he alongwith Ct. Lalit had left the police station and reached at the spot i.e. Dhalan, near Pushpanjali Public School, Tukmirpur Road, Dayalpur, Delhi. When they reached there, ASI Prem Pal was already present. He collected MLC of injured Vijay from him. He made inquiries from ASI Prem Pal and recorded his statement u/s. 161 CrPC and relieved him. He further deposed that injured Vijay had come at the spot alongwith his father. He made inquiries from the injured and prepared site plan (Ex.PW2/B) of place of occurrence at his pointing out. Thereafter, he made efforts to find out the accused persons in the nearby areas but they could not be found. He also recorded statements u/s 161 CrPC of the injured and of his father Vinod.

34. He further deposed that on 10.07.2015 at about 4:00 pm, secret informer telephonically informed him about presence of the accused persons in the area of Tukmirpur, Dayalpur. On receipt of said information, he alongwith Ct. Lalit reached at Tukmirpur Dhalan, where secret informer met them. He further deposed that he had called complainant Vijay and thereafter, they reached at Gali No. 19, Dayalpur, from where accused Mahesh was apprehended by them at the pointing out of complainant. After interrogation, the said accused was arrested, vide arrest memo Ex.PW2/C and his personal search was conducted, vide memo Ex.PW2/D. He had also recorded disclosure statement (Ex.PW5/A) of said accused. After arrest, accused Mahesh had taken them to Khajuri Pushta in front of PTS, from where he got recovered the offending danda. The length of the danda was about 2 feet. He had prepared cloth pullanda of the danda and after sealing the same with seal of SS, he had seized the same, vide seizure memo (Ex.PW5/C). He further deposed that seal after use was handed over to Ct. Lalit. Thereafter, they had reached in gali no. 18, Dayal Pur, from where accused Kallu @ Arun Sharma was apprehended at the pointing out of the complainant. After interrogation, he arrested accused Kallu, vide arrest memo exhibited as Ex.PW2/E and conducted his personal search, vide memo Ex.PW2/F. He had also recorded disclosure statement (Ex.PW5/B) of accused Kallu. Pursuant upon his disclosure statement, accused Kallu had taken them to the place

near Ganda Nala, where he had thrown the offending chhuri in the nala. Efforts were made to find out the said chhuri but same could not be found. He had prepared pointing out memo (Ex.PW5/D) in this regard. He had recorded supplementary statement of complainant Vijay. He had also recorded statement u/s. 161 CrPC of Ct. Lalit.

35. He further deposed that on 21.07.2015, he had deposited MLC of injured Vijay in the hospital and obtained final opinion regarding nature of injuries. He had also placed on record certified copies of DD No. 114B and 116B. Same are marked as Mark PW8/A and B respectively. He had also recorded statement of one Ram Singh who had made 100 number call. He identified both the accused persons during trial. He also identified the case property i.e. one wooden danda as the same danda which was got recovered by accused Mahesh. The danda is exhibited as Ex.P-1.

36. In his cross-examination, he deposed that he had reached at the spot in front of PTS on his own motorcycle. Ct. Lalit was also with him on his motorcycle. They had reached there at about 1:20 am. He denied the suggestion that there was dark at that time. He deposed that street light was available there. He had not shown the street light pole in the site plan (Ex.PW2/B). SI Prem Pal had shown him the spot of incident. There was no article or other thing like eggs rehdi, etc. at the spot. He did not see any blood spots there. He did not make any inquiries from residents. He further deposed that the residential houses were around 100-150 meters away from the spot. No public witness was found at the spot when they reached there. No guard was present outside the gate of PTS. He volunteered that the guards were present inside the gate. He admitted that whenever any person enters in PTS, he is checked by the guards. He could not say how many guards were present inside the gate. The writing work was done while standing near the boundary wall of ganda nala. He further deposed that they remained at the spot for about 1 - 1 ½ hours. He had not gone to the hospital. He did not record statement of ambulance staff. Injured was removed in the police vehicle to the hospital.

37. He further deposed that injured or his father did not come to police station with him. They had come at the spot. Since injured and his father had already come to the spot before his arrival over there, he could not tell whether they had come on foot or by any vehicle. He had not mentioned the time in the statements of injured and his father, as to when, they were relieved. He denied the suggestion that he did not meet injured or his father or for this reason, he did not mention time of relieving them.

38. He further deposed that he had arrested accused Mahesh at about 5:00 pm. He had not noticed any blood stains on the danda recovered at the instance of accused Mahesh. He had also not noticed any blood stains on the bushes where the danda was lying. He further deposed that he had not prepared any site plan of the place of recovery of danda. He had not sent the said danda to FSL as he did not find any blood stains on it. He did not obtain signature of complainant on the recovered danda. He denied the suggestion that no danda was recovered at the instance of accused Mahesh. He had made efforts to join public witnesses in the recovery proceedings of danda but no one had agreed. However, He did not give any notice to those public persons.

39. He also deposed that firstly he had prepared arrest memo, thereafter he prepared personal search memo and then disclosure statement. He had prepared these documents at the Dhalan near the place of recovery of danda. He further deposed that it took about 30-45 minutes in preparing these documents. He denied the suggestion that all these documents were prepared later on in the police station.

40. He further deposed that he met with the complainant first time at the spot of incident. Complainant remained with him for 30-45 minutes. Thereafter, he met complainant in the evening of 10.07.2015 as already deposed in his examination-in-chief and complainant remained with them for about 1 - 1 ½ hours. He denied the suggestion that complainant did not meet them in the evening of 10.07.2015 at any point of time.

41. He admitted that signature of complainant is not there on any document of arrest and recovery of danda as well other documents like pointing out memo of accused Kallu and disclosure statements of Mahesh and Kallu. In response to the court question as to why signature of complainant were not obtained on arrest memos, seizure memo of danda, pointing out memo and disclosure statements of accused persons, witness replied that it skipped his attention. He however admitted that the complainant was under the influence of liquor at the time of incident, as per record. He denied the suggestion that complainant was still under influence of liquor when he met him or for this reason, complainant did not tell correct facts to him. He admitted that he did not find any blood stains at the spot of incident. He did not seize clothes of the injured. MEDICAL / EXPERT WITNESSES

42. PW-4 Dr. Shwetabh is Senior Resident, Surgery from GTB Hospital, Delhi. He had been deputed by Sh. Sanjay Gupta, HOD, Department of Surgery, GTB Hospital, Delhi to depose in this case as Dr. Millo Asha, Senior Resident in Department of Surgery, GTB Hospital, Delhi, had already left the services of GTB Hospital. He deposed that since he had worked with her in GTB Hospital, he could identify her signature and handwriting.

43. He further deposed that on 10.08.2015, Dr. Millo Asha gave an opinion regarding the nature of injury of the patient Vijay as per surgical notes as 'simple' on MLC No. 1400. Said opinion is exhibited as Ex.PW4/A.

44. PW-6 is Dr. Raj Kapoor. He deposed that on 09.07.2015, he was working as CMO at JPC Hospital, Delhi. On that day, one patient namely Vijay S/o Vinod, a male aged about 19 years was brought to the Casualty by one Rakesh of CATS E-19 with alleged history of physical assault at around 9:30 pm. He was examined by him at about 11:00 pm on the same day. He had prepared MLC No. A1400 (Ex.PW6/A) regarding examination of aforesaid patient. In his opinion, injuries sustained by the patient as mentioned in the MLC, were caused by sharp edged weapon. After his examination, the patient was referred to surgery department of JPC Hospital and as per record, the patient was further referred to GTB hospital for neuro surgery opinion. He had also opined in the MLC that opinion regarding nature of injury was to be given by SR (Surgery).

45. In his cross-examination, he deposed that as per record, opinion given by surgery department is simple. He admitted that the patient was under

> influence of alcohol as noted in the MLC. He also admitted that patient did not tell the name of assailants.
>
> FORMAL WITNESSES

46. PW-1 is ASI Shanti Lal. He deposed that on 10.07.2015, he was posted in PS Khajuri Khas and was working as Duty Officer from 12.00 midnight to 08.00 a.m. At about 12.20 am., Ct. Lalit produced a rukka before him sent by ASI Prem Pal. On the basis of said rukka, FIR bearing no. 727/15 was registered through computer operator. He made DD No. 4A in the roznamcha register in this regard. He also made endorsement (Ex.PW1/A) on the rukka. After registration of FIR, he had sent copy of FIR and rukka to SI Sahab Singh through Ct. Lalit Kumar. Copy of said FIR is exhibited as Ex.PW1/B. Certificate under Section 65B of the Indian Evidence Act is exhibited as Ex.PW1/C. STATEMENTS OF ACCUSED PERSONS

47. Incriminating circumstances appearing in evidence against both accused persons were put to them as required u/s 313 CrPC. Accused persons stated that they were innocent and were falsely implicated.

48. Accused Mahesh stated that he was running a tea stall outside Gali No. 19, Dayalpur Vistar, Delhi during the relevant period. Vijay (PW-2) oftenly used to consume tea and snacks/namkeen and whenever he used to demand money from him, he always used to threat him for teaching a lesson and to get him falsely implicated in some case, if he ever demanded money from him and also used to force him to remove his rehdi of tea stall from said place so that some other person may operate from the said place. He used to extend threat to implicate him in some false case on his refusal to do so. Due to said reasons, Vijay got him falsely implicated in this case on the basis of false and baseless allegations.

49. Accused Kallu stated in his defence that about 2-3 months prior to the date of alleged incident, Vijay (PW-2) had visited his house on the occasion of Holi. He was under the influence of liquor at that time. He applied colours on his face as well as on the faces of male members of his family and when he tried to put colurs on the faces of female members of the family, his father Sh. Krishan Pal Sharma scolded him, on which Vijay left his house while extending threat to teach them a lesson in near future. Due to said reason, he got him falsely implicated in this case on the basis of false and baseless allegations. DEFENCE WITNESS

50. As already noted above, accused Kallu @ Arun Sharma has examined his father as DW-1 in his defence. DW-1 deposed that victim Vijay was previously known to him as his (DW-1) daughter was married in the village of said victim. In the year 2015, it was festival of Holi, at about 12:00/12:30 pm, when he alongwith 4-5 other senior citizens were sitting in his house, said Vijay came in drunken condition and put gulal on their faces. When his daughter Raj Laxmi married in the village of Vijay, came downstairs to serve tea to the guests, Vijay put gulal upon his daughter and also tried

to go upstairs where his daughters-in- law were present. He did not allow Vijay to go there, on which he used abusive language and had extended threat to see them soon while leaving the house. He deposed that due to said reason, Vijay got his son falsely implicated in the present case in July 2015. He also deposed that Vijay is drug addict and used to drink liquor on daily basis and no such incident was committed against him.

51. During his cross-examination, he testified not to have lodged any police complaint with regard to alleged incident on the day of Holi in the year 2015. He further deposed that he was away from Delhi as on 09.07.2015 and therefore, he could not say as to how Vijay had sustained injuries on that day. He came to know about the present case on 09.07.2015. He tried to file written complaint before police regarding false implication of his son but his complaint was not received. He did not send written complaint through post. He denied the suggestions that he did not lodge any complaint with regard to alleged incident of Holi as no such incident took place or that he was deposing falsely in order to save his son from punishment in the present case.

SUBMISSIONS OF THE PARTIES

52. I have already heard Ms. Sushma Badhwar, learned Addl. PP for the State and Sh. S.K. Gill, Advocate for accused persons. I have also gone through the record.

ARGUMENTS ADVANCED AND CASE LAW CITED

53. While opening the arguments, Ld. Addl. PP vehemently argued that the prosecution has been successful in establishing the charge levelled against the accused persons beyond shadow of doubt in view of the testimonies of PW-2 Vijay (victim), PW-3 Vinod, PW-4 Dr. Shwetab and PW-6 Dr. Raj Kapoor and the documentary evidence including MLC (Ex.PW6/A) of victim proved during trial. She further argued that PW-2 had no reason to depose falsely against the accused and he has fully supported the case of prosecution during trial. She also submitted that DW-1 examined by accused Kallu, is an interested witness being father of said accused. Hence, both the accused persons should be convicted for the offence punishable u/s 307/34 IPC in this case.

54. Per contra, Ld. Defence Counsel vehemently argued that the prosecution has failed to prove the accusations levelled against the accused during the course of trial and both the accused have been falsely implicated in this case. He further argued that the testimony of PW-2 is contradictory to his previous police statement and he has made various improvements during trial and thus, he should not be believed by the Court. He also argued that the testimony of PW-3 Vinod (father of victim) is based on hearsay apart from the fact that he is also an interested witness. He also argued that for want of any independent witness being examined during trial, the prosecution case remained unproved. Hence, both the accused persons deserve to be acquitted in this case.

55. Before dealing with the rival submissions made on behalf of both the sides and before appreciating the prosecution evidence which has come on record, it would be relevant to mention the necessary ingredients which are required to be proved in order to bring the case within the sweep of Section 307 IPC. Those ingredients may be considered as under:-

Essentials of Section 307 IPC:-

i. That the death of a human being was attempted; ii. That such death was attempted to be caused by, or in consequence of the act of the accused; iii. That such act was done with the intention of causing death; or that it was done with the intention of causing such bodily injury as; (a) the accused knew to be likely to cause death; or (b) was sufficient in the ordinary course of nature to cause death, or that the accused attempted to cause death by doing an act known to him to be so imminently dangerous that it must in all probability cause (a) death, or (b) such bodily injury as is likely to cause death, the accused having no excuse for incurring the risk of causing such death or injury.

56. It is well settled law that the question of intention to kill or the knowledge that the act would cause death, is a question of fact and not one of law. To attract, the provision of Section 307 IPC, the guilty intention or the knowledge with which an act was done, is material irrespective of its result. The intention and the knowledge are the matters of inference to be drawn from the probability of circumstances and cannot be measured merely from the result.

57. An act which is done with knowledge or intention that it is likely to cause death, is an offence of attempt to murder and is punishable under section 307 IPC. The line of demarcation between an offence punishable under section 324 IPC and the one punishable under section 307 IPC is that to fall a case within Section 307 IPC, the act must be done with such a mens-rea as would have constituted the act of murder if death had occurred. Thus, in an attempt to commit murder, all the elements of murder exist, except the fact of death. Intention of the accused depends upon the facts and circumstances of the particular case. All the factors i.e. (i) the nature of the weapon used, (ii) express intention at the time of the act, (iii) severity and persistence of the blows have to be considered cumulatively in arriving at any conclusion. So far as conviction is to be based on knowledge as distinguished from intention, law has to apply according to the degree of likelihood and the knowledge of the assailant established.

58. Now turning back to the facts of the present case. PW-2 Vijay is the victim himself who, as per case of prosecution, was assaulted by these two accused persons and against whom incident in question was allegedly committed. Said witness is found to have sustained injuries during the said incident and this fact is duly established from his MLC (Ex.PW6/A) and stands corroborated from the ocular testimony of PW-6 Dr. Raj Kapoor of JPC Hospital, who had prepared the said MLC. According to said MLC, PW-2 is shown to have sustained multiple incised wound of the size of 3 x 1 cm approx. on right FA of right hand and another multiple incised wound of the size of 1 x 1 cm on distal FA on flexor aspect, wound of the size of 3 x 0.5 cm on base of middle finger on dorsum; wound of the size of 1 x 0.5 cm on radial aspect approx. 5 inches from wrist; multiple small incised wound on distal FA and small swelling on right F P region. He was referred to SR (Surgery) for further management and treatment. PW-6 has categorically deposed that those injuries were caused by sharp edged weapon. Both the accused preferred not to cross-examine said witness with regard to those injuries and the relevant part of his deposition that same were caused by sharp edged weapon.

59. No doubt, there are certain improvements found to have been made by PW-2 during trial viz-a-viz his police statement Ex.PW2/A, which have already been noted above while discussing his testimony in detail, but said improvements are not considered to be on material aspects i.e. the sequence of events which led to the incident in question and also about the manner in which incident was committed against him.

60. PW-2 is found to have fully supported the case of prosecution so far as the manner in which the incident was committed against him by these two accused who are also correctly identified by the victim as the assailants during trial. There is no merit in the argument advanced by defence counsel that these two accused had no motive to inflict injuries upon the victim, in the backdrop of the fact that PW-2 categorically deposed that these two accused who were previously known to him, were already drunk and had demanded money from him (victim) before causing the incident in question. It was only when victim refused to give money to the accused, they started beating the victim and inflicted abovenoted injuries upon him.

61. There is no substance in the argument raised on behalf of accused to disbelieve the testimony of PW-2 merely because relevant part of his ocular testimony says that accused Mahesh had hit danda on his head but no such injury is shown to have been sustained by said witness on his head as per his MLC. There is nothing on record to suggest as to what was the force with which said danda blow was given on the head of victim and it is nowhere the case of prosecution that victim had sustained any injury on his head. For similar reason, the argument of Ld. Defence Counsel that PW-2 did not identify danda seized during investigation, when it was produced during trial and was shown to the witness, shows that entire case of prosecution is false, is devoid of any merit. The very fact that PW-2 did not identify said danda, lends credence to his ocular testimony which is found to be truthful and reliable. Had it been the case where said witness would have been deposing falsely out of any ill-motive or on account of any kind of tutoring given to him, it was not difficult for him to identify the said danda during trial. Hence, I do not find any reason to disbelieve his testimony or to throw away the entire case of prosecution on aforesaid grounds.

62. The next limb of argument raised by Ld. Defence Counsel was that victim was under the influence of liquor as mentioned in his MLC and he claimed to have become unconscious in his police statement Ex.PW2/A but he is shown to be in conscious condition as per his MLC. Therefore, the said witness was not believable. No doubt, aforesaid contradiction appearing in police statement viz-a- viz his MLC is there but the victim while entering into witness box, has been categorical in his deposition that he did not become unconscious and he did not state so in his police statement. It may be noted here that PW-2 is found to have sustained severe injuries on his right hand. Not only this, he had shown his right hand during his testimony and there were two injury marks visible on his right hand, as observed by my Ld. Predecessor while recording the testimony of said witness during trial.

63. Moreover, the testimony of the injured witness is accorded a special status in law. This is as a consequence of the fact that the injury to the witness is an inbuilt guarantee of his presence at the scene of the crime and because the witness will not want to let his actual assailant to go unpunished merely to falsely implicate a third party for the commission of the offence. Thus, the deposition of

the injured witness should be relied upon unless there are strong grounds for rejection of his evidence on the basis of major contradictions and discrepancies therein.

64. In the matter titled as "Abdul Sayeed Vs. State of Madhya Pradesh" reported at 2010 IX AD (S.C) 615, Hon'ble Apex Court has held as under:-

> "xxxxxx The question of the weight to be attached to the evidence of a witness that was himself injured in the course of the occurrence has been extensively discussed by the Court. Where a witness to the occurrence has himself been injured in the incident, the testimony of such a witness is generally considered to be very reliable, as he is a witness that comes with a built-in- guarantee of his presence at the scene of the crime and is unlikely to spare his actual assailant(s) in order to falsely implicate someone. "Convincing evidence is required to discredit an injured witness.
>
> xxxxxx"

65. Reference may also be made to the case of "State of Uttar Pradesh Vs. Naresh & Ors.", 2011 AD (SC) 20 - wherein it was observed that:

> "xxxxx The evidence of an injured witness must be given due weightage being a stamped witness, thus, his presence can not be doubted. His statement is generally considered to be very reliable and it is unlikely that he has spared the actual assailant in order to falsely implicate someone else. The testimony of an injured witness has its own relevancy and efficacy as he has sustained injuries at the time and place of occurrence and this lends support to his testimony that he was present during the occurrence. Thus, the testimony of an injured witness is accorded a special status in law. The witness would not like or want to let his actual assailant go unpunished merely to implicate a third person falsely for the commission of the offence. Thus, the evidence of the injured witness should be relied upon unless there are grounds for the rejection of his evidence on the basis of major contradictions and discrepancies therein.
>
> xxxxxx"

66. In view of above, there is no compelling reason shown on behalf of accused to reject the ocular testimony of PW-2 being injured witness. Moreover, the accused are shown to have taken contradictory defence at different stages of trial. During cross-examination of PW-2, suggestion was put to him on behalf of accused that he had gone to the house of his in-laws in drunken condition and he was beaten up there by his in-laws. During same cross-examination, suggestion was also put to him on behalf of accused that he had fallen on the fencing of Delhi Police Training Centre in drunken condition and had sustained injuries. It is also relevant to note that the above stated defence raised by accused Mahesh, was never put to PW-2 during his cross-examination and said defence remained unsubstantiated as said accused did not even prefer to lead any evidence in his defence. As regards the testimony of DW-1, he is found to be an interested witness being father of

accused Kallu @ Arun Sharma. His testimony does not arouse belief of the Court and same is considered to be quite vague. Despite the fact that he deposed that Vijay (PW-2) had visited his house on the festival of Holi in the year 2015 and having tried to put colour on the faces of female members and on not being allowed to do so, he having extended threat to see them, no complaint whatsoever is shown to have been made by him either immediately or at any subsequent point of time. So much so, DW-1 also did not lodge any complaint regarding false implication of his son i.e. accused Kallu soon after registration of FIR in this case or even subsequent thereto. Hence, Court is of the view that his testimony is liable to be rejected.

67. There is no delay as such in registration of FIR as contended by Defence Counsel, since time of incident being 9:30 pm on 09.07.2015 and FIR in question is found to have been registered at 12:20 am on 10.07.2015. The contention raised by Defence Counsel that name of assailant is not mentioned in MLC and relevant column meant for mentioning as to who had brought the patient for his medical examination in the hospital being lying blank in MLC Ex.PW6/A and same creating doubt in the case of prosecution, does not hold ground as MLC was prepared by PW-6 Dr. Raj Kapoor but no such question was asked from him on behalf of accused persons during his cross-examination. Non- recovery of knife used in the commission of crime, is totally immaterial and is not fatal to the case of prosecution at all. No doubt, PW-5 has deposed that he had seen blood spots at the place of incident but IO did not lift the blood from the spot but said lapse, if any, is on the part of investigating officer and accused cannot be allowed to get any benefit due to said lapse. Moreover, said lapse does not go to the root of the prosecution story to the extent that accused persons are entitled to be given any benefit of doubt on this ground as there is otherwise strong evidence available on record in the form of testimony of PW-2 Vijay (victim) and medical evidence in the form of testimonies of PW-4 and PW-6 and the MLC proved during trial. There is no substance in the next argument of Ld. Defence Counsel that IO failed to explain as to why he did not record statement of Vinod (PW-3) in the hospital. The testimony of PW-3 is merely of corroborative nature and said witness was admittedly not present at the time of occurrence of incident in question. He had accompanied victim to the hospital in ambulance and his testimony is relevant only to the extent whereby he deposed about the condition of his son/victim at the time when he had reached the spot after being informed about the incident.

68. The other argument raised by Defence Counsel that PCR caller i.e. PW-9 also not claimed to have seen the incident in question and his testimony creates reasonable doubt in the prosecution case, is totally misconceived in as much as said witness nowhere deposed that incident had taken place in his view. Rather, he has testified that while he was present opposite Police Centre, he provided his mobile phone containing SIM No. 9560616771 to one person on his request and said phone was returned back to him after making call and thereafter, he had left away from there.

69. In view of the aforesaid discussions, Court is of the considered opinion that the incident in question was caused by both these accused persons against the victim Vijay on 09.07.2015 at 9:30 pm and victim was assaulted with sharp edged object.

70. Now, it is required to be seen whether in view of the evidence of the prosecution, the offence u/s 307 IPC is made out against the accused persons or not. To fall a case u/s 307 IPC the above referred

essential ingredients of section 307 IPC are required to be established.

71. It is well settled law that if from the material on record, it is clear that neither any premeditation was there nor the injuries caused was of such a nature from which it can be inferred that accused was aware that the injuries caused by him by such an assault, can lead to the death of injured, then in such a case, the accused would be held guilty of the offence of causing that particular injuries and not in respect of offence punishable u/s 307 IPC.

72. In the case of Rajvir and Anr. v. State (Delhi) : Crl. A. 630 of 1999, the injured was stabbed in his stomach with a knife without any premeditation and having regard to the nature of assault and injuries, it has been held by the Hon'ble Delhi High Court that accused was guilty of offence u/s 324 IPC. The relevant paras of the judgment read as under:-

> 39. Though PW.4 stated that it was a pre-meditated attack, testimony of PW.2, PW.4 and PW.5 does not ruled out the possibility of a sudden fight.
>
> 40. Recovery of weapon of offence being doubtful, nature of injury has reflected in the MLC and the broad features of the case not ruling out a sudden fight, intention has to be gathered from the nature of injuries as recorded in the MLC and no other evidence.
>
> 41. We do not have the penetration i.e. the depth of the wound.

Only one injury was caused, may be in the stomach, but the same does not reflect an intention to cause death. It is trite that to come within the four corners of Section 307 Indian Penal Code, all ingredients of murder save and except death of the injured are to be found.

42. Conviction of appellant Rajvir under Section 307 cannot be sustained on the evidence on record.

73. It has been held by the Hon'ble Madhya Pradesh High Court in the case of Vardichand v. Rameshwar (Madhya Pradesh) : 2006(2) CCR 215, where the simple injuries have been caused on the vital part of body and it cannot be inferred that accused was aware that such an assault could lead to the death of injured, the accused will not be guilty of the offence of 307 IPC. Relevant paras of the judgment read as under:-

> "6. The description of injuries which were found in the body of the injured persons given in the impugned order shows that there was an injury on the vital part of the body of the Ramchandra that too was a simple injury and other injuries were on the non-vital parts like femur, both legs and back. Another person Vardichand has also sustained injuries in the incident, was also having only one injury on vital part of his body. On the examination it was found that there was no fracture on the body of both the injured persons.

> 7. Learned Sessions Judge considering the nature of these injuries has rightly come to the conclusion that there was no intention of causing death of either Ramchandra or Vardichand because most injuries were caused in non vital parts of the body and the injuries found on the vital part of the body were of simple nature.
>
> 8. Mr. Saraswat learned Counsel for the applicant relied upon the judgment in the matter of Bappa @ Bapu v. State or Maharashtra and Another, V (2004) SLT 5=III (2004) CCR 77 (SC)=(2004) 6 SCC 485, wherein it has held that:
>
> "the Court is to see whether the act in question, irrespective of its result, was done with the intention or knowledge and under circumstances mentioned in Section 307 , it is sufficient to justify a conviction under Section 307 if there is present an coupled with some overt act in execution thereof. It is not essential that bodily injury capable of causing death should have been inflicted. Although the nature of injury actually caused may often give considerable assistance in coming to a finding as to the intention of the accused, such intention may also be deduced from other circumstances, and may even, and may even in some cases, he ascertained without any reference at all to actual wounds".

9. Mr. Saraswat on the basis of the above observation of the Apex Court argued that in the present case also intention to cause death should have been inferred by learned Sessions Judge. But there is no force in the argument advanced by Mr. Saraswat because it can very well be seen that as per the case of prosecution while causing injury to injured persons every precaution was taken not to cause a injury in any vital part of the body of injured persons and single injury which was caused on the vital part was also caused with lesser force, so that there may not damage to head, therefore, in such circumstances the learned Sessions Judge came to the conclusion that intention to cause death or knowledge that thereby the death might have been caused are missing."

74. Thus, firstly prosecution has to establish that the assault was made with an intention to cause death irrespective of the fact that whether actually any injury has been caused or not. In the present case, it is clear from the version of the complainant/victim (PW-2) that both the accused did not have any intention or premeditation to assault him. It is further clear from the facts established on record that while complainant was returning back to his house, both the accused had demanded money from him and on his refusal to do so, he was assaulted by the accused persons. The entire testimony of PW-2 is completely silent that both the accused had any intention to kill him or they were having requisite knowledge that their act of assaulting him with knife, may lead to his death. It is also important to note that PW-2 is not shown to have sustained any kind of injury whatsoever on any of vital parts of his body due to the incident in question. Thus, it is clear from these facts and circumstances that the assault was neither with the intention to kill the complainant nor there was any pre-determination and it seems from these facts and circumstances that both these accused had assaulted the complainant at the time when he was under influence of liquor. Thus, under these circumstances, it cannot be said that the accused were having knowledge that with the said assault, the complainant might die. Hence, in view of all these established facts and circumstances which have come on record, it is held that none of the essential ingredients of section 307 i.e. intention and

knowledge have been proved on record by the prosecution, therefore, in view of the facts and circumstances of the present case, it is held that both the accused had voluntarily caused injuries to the complainant by sharp edged weapon. Thus, the present case falls in the category of Section 324/34 IPC. Accordingly, it is held that the prosecution has failed to bring home the guilt of either of the accused in respect of offence punishable u/s 307 IPC. However, both these accused are held guilty of voluntarily causing simple hurt to the complainant/victim Vijay by using a sharp edged weapon and consequently, they are convicted for the offence punishable u/s 324/34 IPC. Arguments on the points of sentence will be heard separately.

Announced in open court

on 31st day of May, 2019.

VIDYA PRAKASH
PRAKASH
Location: Karkardo
Date: 2019.06.01 1
+0530

(VIDYA PRAKASH)
Additional Sessions Judge /
NE / KKD Courts / Delhi.